

Smt. Gayatri Devi & Others vs State Of U.P., Thru. Prin. Secy.,Home & ... on 29 July, 2010

Author: Raj Mani Chauhan

Bench: Raj Mani Chauhan, Virendra Kumar Dixit

Court No. 20

Writ Petition No. 7127 (M/B) of 2010

Smt Gayatri Devi and others

Petitioners

Vs

State of U.P and others

Opp. Parties

Hon'ble Raj Mani Chauhan, J.

Hon'ble Virendra Kumar DIXIT,J.

Heard learned counsel for the petitioners, learned A.G.A and perused the documents available on record.

This petition under Article 226 of the Constitution of India has been filed by the petitioners for quashing the impugned FIR, registered in case crime No. 54 of 2010, under Sections 498-A, 323, 506 I.P.C. and Section 3/4 D.P. Act at Police Station Manak Nagar, District Lucknow and also for direction to the opposite parties not to arrest the petitioners in pursuance to the said impugned FIR.

The submission of learned counsel for the petitioners is that the marriage of opposite party No.4 Renuka Saini was solemnised with Manoj Kumar Saini in the year 2000. Since then her husband and his family members were demanding Rs.50,000/- but she never moved any complaint either to Police or any Officer. The relations between the opposite party No.4 and her husband became strained. The husband of opposite party No.4 has already filed a petition under Section 13 of the Hindu marriage Act, 1955 against her for dissolution of marriage. Thereafter, she lodged the impugned FIR with false allegation against the petitioners just to harass and pressurise him. The petitioner No.1 Gayatri Devi, who is mother-in-law of opposite party No.4, is old aged ailing lady. The petitioners No. 4 to 8 were living separate from the opposite party No.4 and her husband. They have falsely been implicated by the complainant. Therefore, they needs protection during investigation.

Learned A.G.A. opposed the petition.

Considered the submissions of learned counsel for the petitioners and learned A.G.A.

Issue notice to opposite party No. 4 to file counter affidavit within four weeks. Rejoinder affidavit

may be filed within two weeks thereafter.

List thereafter.

Keeping in view the facts and circumstances of the case, it is provided that till the next date of listing, petitioners will not be arrested in the aforesaid case crime number by the Investigating Officer, subject to their cooperation in the investigation which will go on.

29.07.2010 Renu/-